ORDINANCE NO. 23-030Z-SUB A

Town of North Providence

AN ORDINANCE AMENDING

CHAPTER 35 ZONING

THE WORDS BELOW IN UNDERLINE SHALL BE ADDED AS A NEW SECTION TO THE ZONING ORDINANCE.

203. District Use Regulations

Q. Adaptive Reuse Projects

1. Permitted Use. Adaptive reuse for the conversion of any commercial building, including offices, schools, religious facilities, medical buildings, and malls into residential units or mixed-use developments is a permitted use, under the criteria described below under Eligibility.

2. Eligibility.

    a. Adaptive reuse development must include at least 50% of the existing gross floor area developed into residential units.

    b. There are no environmental land use restrictions recorded on the property preventing the conversion to residential use by RIDEM or the US EPA.

3. Density calculations.
    a. For projects that meet the following criteria, the residential density shall be no less than fifteen (15) dwelling units per acre:
        i. Where the project is limited to the existing footprint, except that the footprint is allowed to be expanded to accommodate upgrades related to the building fire code, and utility requirements.

        ii. The development includes at least twenty percent (20%) low- and moderate-income housing.

        iii. The development has access to public sewer and water service or has access to adequate private water, such as well and/or wastewater treatment systems approved by the relevant state agency for the entire development as applicable.

    b. For all other adaptive reuse projects, the residential density permitted in the converted structure shall be the maximum allowed that otherwise meets all standards of minimum housing and has access to public sewer and water services or has access to adequate private water, such as well and wastewater treatment systems approved by the relevant state agency for the entire development, as applicable.

    c. The density proposed for any adaptive reuse project shall be determined to meet all public health and safety standards.

4. Dimensional requirements.
    a. Notwithstanding any other provisions of this section, existing building setbacks shall remain and are considered legal nonconforming.

    b. No additional encroachments shall be permitted into any nonconforming setback unless relief is granted by the permitting authority.

c. Notwithstanding other provisions of this section, the height of the structure shall be considered legal nonconforming if it exceeds the maximum height of the zoning district in which the structure is located.

i. Any rooftop construction necessary for building or fire code compliance, or utility infrastructure is included in the height exemption.

5. Parking requirements.
   a. Adaptive reuse developments shall provide one parking space per dwelling unit. The applicant may propose additional parking in excess of one space per dwelling unit.

   b. The parking requirements and design standards in Article VII shall apply to all uses proposed as part of the project unless otherwise approved by the applicable authority. The number of parking spaces required shall apply for uses other than residential.

6. Allowed uses within an adaptive reuse project.
   a. Residential dwelling units are a permitted use in an adaptive reuse project regardless of the zoning district in which the structure is located, in accordance with the provisions of this section.

   b. Any nonresidential uses proposed as part of an adaptive reuse project must comply with the provisions of Article II, Section 203 for the zoning district in which the structure is located.

7. Development and Design Standards. Site design shall be in accordance with the Land Development and Subdivision Regulations.

8. Procedural requirements. Adaptive reuse project shall be subject to the procedural requirements of Article VIII of the Zoning Ordinance.

   a. In addition to the checklist requirements for the applicable review process, the applicant shall provide the following information:
      1. The proposed residential density and the square footage of nonresidential uses.

      2. A floor plan to scale for each building indicating, as applicable, the use of floor space, number of units, number of bedrooms, and the square footage of eacunit.

9. Specific and objective provisions
   a. The specific and objective criteria for adaptive reuse projects are found in the Land Development and Subdivision regulations.

APPROVED AS TO FORM AND LEGALITY:

Town Solicitor

Adopted: January 2, 2024

Council President

Approved: January 9, 2024

Mayor

Town Clerk